



Via Electronic Mail

March 13, 2026

Dr. India Wright
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
iwright@fmc.gov

Re: URGENT – Request for Special Permission, Emergency Conflict Surcharge (ECS)
Addition of Somalia/Port of Berbera

Dear Dr. Wright,

On March 3, 2026 CMA CGM S.A. (“CMA CGM”) submitted a special permission request pursuant to 46 C.F.R. § 520.14, seeking to implement an Emergency Conflict Surcharge at the earliest possible date due to impacts of recent developments in Iran and across the Arabian Peninsula.

CMA CGM hereby submits a new, additional request for special permission seeking to add an additional port to the scope of the above-referenced special permission request. As CMA CGM works to find solutions for customers it’s learned that the same exceptional reasons articulated in CMA CGM’s prior request for special permission dated March 3, 2026 also apply for the Port of Berbera in Somalia. A copy of the referenced special permission application dated March 3rd is attached hereto as “Exhibit 2” for ease of reference.

CMA CGM promptly amended its applicable U.S. tariff rule(s) on March 11, 2026 to add the Port of Berbera, Somalia. We now submit this second special permission request seeking to expand the scope of CMA CGM’s March 3rd application for special permission accordingly and have the Emergency Conflict Surcharge become applicable at the earliest possible date for all locations currently referenced in CMA CGM’s relevant tariff rule(s).

As explained in CMA CGM’s special permission request dated March 3rd, recent developments in Iran and across the Arabian Peninsula raise significant concerns for the safety of vessels, crew and cargo. In order to ensure the safety of crew and vessels, as well as to safeguard cargo, CMA CGM is undertaking extensive measures to safeguard operations including but not limited to instructing containerships currently inside the Gulf and/or bound to the Gulf to shelter and suspending passage through the Suez Canal. These safety measures and evolving operational impacts have been broadly communicated via customer advisory.

CMA CGM is proactively working to ensure continuity of service and solutions for customers who need cargo delivered to or loaded from ports in the region impacted by these evolving developments related to Iran and the security situation in the Middle East. While we're able to offer certain continuing service solutions for customers, unfortunately it comes at a significant and unexpected increase in operating costs. In addition, the disruption of normal service patterns is expected to have an adverse impact of operations globally – including equipment flows and availability along with congestion/bottlenecks. Given this sudden and unavoidable increase in operating costs CMA CGM published its new Emergency Conflict Surcharge on March 2, 2026 in order to assist with recovering these unanticipated costs from customers who choose, despite the current aggression in the region, to ship cargo to or from impacted ports. The current effective date for the locations initially identified when CMA CGM filed its new Emergency Conflict Surcharge on March 2nd is scheduled for April 1, 2026. As referenced above, CMA CGM amended its applicable U.S. tariff rule(s) on March 11, 2026 to add the Port of Berbera, Somalia. The current effective date of CMA CGM's Emergency Conflict Surcharge for the Port of Berbera is scheduled for April 10, 2026.

Relevant tariff rules implementing CMA CGM's Emergency Conflict Surcharge were published in both CMDU028, which covers U.S. exports to the impacted region, and CMDU029, the scope of which covers U.S. imports from the impacted region. See Exhibit #1 for copies of relevant tariff rules.

The Emergency Conflict Surcharge is duly published in relevant CMA CGM tariffs as follows:

CMDU028, Rule 002, Sub Rule 168 (scope includes U.S. exports to specified locations in the Middle East & Africa)

- \$2,000 per TEU for dry containers
- \$3,000 per FEU for dry containers
- \$4,000 per container for reefer containers and special equipment

CMDU029, Rule 002, Sub Rule 147 (scope includes U.S. imports from specified locations in the Middle East & Africa)

- \$2,000 per TEU for dry containers
- \$3,000 per FEU for dry containers
- \$4,000 per container for reefer containers and special equipment

Both above U.S. tariff rules were promptly amended on March 11, 2026 to add the Port of Berbera. However, unless the effective date of this new surcharge's applicability – including for the Scope of Berbera - is advanced, CMA CGM will be unable to begin offsetting these highly exceptional increased costs for weeks.

Accordingly, CMA CGM respectfully requests special permission to advance the effective date of the Emergency Conflict Surcharge – including for the Port of Berbera - to the earliest possible date.

The filing fee for this special permission request was paid electronically. The relevant Pay.gov tracking ID is 280FLGUL and the Agency Tracking ID is 77325851547.

We greatly appreciate your consideration of this request. Please do not hesitate to contact me should you have any questions or requests for further information.

With best regards, I am

Sincerely,

A handwritten signature in blue ink, consisting of a large, stylized loop followed by a horizontal line that tapers to a point on the right.

Draughn Arbona
VP U.S. Compliance

Exhibit #1

Tariff Type	CMDU028
Rule Number	002
Rule Title	APPLICATION OF RATES AND CHARGES

RULE NUMBER	SUB RULE NUMBER	SUB RULE TITLE	FILE DATE	EFFECTIVE DATE	THRU DATE	EXPIRY DATE	AMENDMENT CODE	STATUS	SPECIAL CASE
002	168	EMERGENCY CONFLICT SURCHARGE (ECS00)	2026-03-11	2026-04-10		9999-12-31	A	A	

Description

Emergency Conflict Surcharge (ECS00)

Carrier has implemented an **Emergency** Conflict Surcharge (ECS00) for all ports of load/discharge located within the below-referenced countries, due to on-going safety concerns related to developments in Iran and across the Arabian Peninsula. The charge will apply to all ports of load/discharge located in the below countries unless specific port(s) are identified:

Bahrain
Djibouti
Egypt/Port of Ain Sokhna
Eritrea
Iraq
Jordan
Kingdom of Saudi Arabia
Kuwait
Oman
Qatar
Sudan
United Arab Emirates
Yemen
Somalia/Port of Berbera

A charge of US\$ 2,000 per 20' (TEU), \$3,000 per 40' (FEU) will apply to all tariff and service contract commodities for dry container type rates.

A charge of \$4000 per container will apply to all tariff and service contract commodities for reefer and special equipment type rates.

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Description

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- Bahrain
- Djibouti
- Egypt/Port of Ain Sokhna
- Eritrea
- Iraq
- Jordan
- Kingdom of Saudi Arabia
- Kuwait
- Oman
- Qatar
- Sudan
- United Arab Emirates
- Yemen
- Somalia/Port of Berbera

A charge of US\$ 2,000 per 20' (TEU), \$3,000 per 40' (FEU) will apply to all tariff and service contract commodities for dry container type rates.

A charge of \$4000 per container will apply to all tariff and service contract commodities for reefer and special equipment type rates.



Via Electronic Mail

March 3, 2026

Dr. India Wright
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573
iwright@fmc.gov

Re: URGENT – Request for Special Permission, Emergency Conflict Surcharge (ECS)

Dear Dr. Wright,

CMA CGM S.A. (“CMA CGM”) urgently requests special permission pursuant to 46 C.F.R. § 520.14 to implement an Emergency Conflict Surcharge at the earliest possible date. The highly exceptional reasons for this request are set forth below.

As a global carrier, CMA CGM operates services between the United States and various locations around the world, including the Middle East and Africa.

As you are likely aware, due to broadly publicized global news reports, recent developments in Iran and across the Arabian Peninsula raise significant concerns for the safety of vessels, crew and cargo. In order to ensure the safety of crew and vessels, as well as to safeguard cargo, CMA CGM is undertaking extensive measures to safeguard operations including but not limited to instructing containerships currently inside the Gulf and/or bound to the Gulf to proceed to shelter and suspending passage through the Suez Canal. These safety measures and evolving operational impacts have been broadly communicated via customer advisory.

CMA CGM is proactively working to ensure continuity of service and solutions for customers who continue to need cargo delivered to or loaded from ports in the region impacted by these evolving developments related to Iran and the security situation in the Middle East. While we’re able to offer certain continuing service solutions for customers, unfortunately it comes at a significant and unexpected increase in operating costs. In addition, the disruption of normal service patterns is expected to have an adverse impact of operations globally – including equipment flows and availability along with congestion/bottlenecks. Given this sudden and unavoidable increase in operating costs CMA CGM has published a new Emergency Conflict Surcharge in order to assist with recovering these unanticipated costs from customers who choose, despite the current aggression in the region, to ship cargo to or from impacted ports. The current effective date for this new Emergency Conflict Surcharge is scheduled for April 1, 2026. See Exhibit #1 hereto for a copy of the

relevant tariff publication(s). Relevant tariff rules implementing CMA CGM's Emergency Conflict Surcharge were published in both CMDU028, which covers U.S. exports to the impacted region, and CMDU029, the scope of which covers U.S. imports from the impacted region.

For ease of reference, the Emergency Conflict Surcharge was duly published in relevant CMA CGM tariffs as follows:

CMDU028, Rule 002, Sub Rule 168 (scope includes U.S. exports to the Middle East & Africa)

\$2,000 per TEU for dry containers

\$3,000 per FEU for dry containers

\$4,000 per container for reefer containers and special equipment

CMDU029, Rule 002, Sub Rule 147 (scope includes U.S. imports from the Middle East & Africa)

\$2,000 per TEU for dry containers

\$3,000 per FEU for dry containers

\$4,000 per container for reefer containers and special equipment

Both above U.S. tariff rules were published on Monday, March 2nd as the first opportunity following unanticipated developments related to Iran that arose on Saturday, February 28th, 2025. However, unless the effective date of this new surcharge is advanced, CMA CGM will be unable to begin offsetting these highly exceptional increased costs for almost a full month.

Accordingly, CMA CGM respectfully requests special permission to advance the effective date of the Emergency Conflict Surcharge to the earliest possible date.

The filing fee for this special permission request was paid electronically. The relevant Pay.gov tracking ID is 2805NMUV and the Agency Tracking ID is 77315451876.

We greatly appreciate your consideration of this request. Please do not hesitate to contact me should you have any questions or requests for further information.

With best regards, I am

Sincerely,



Draughn Arbona
VP U.S. Compliance

Exhibit #1

History

Tariff Type	CMDU028
Rule Number	002
Rule Title	APPLICATION OF RATES AND CHARGES

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Description

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Djibouti
Egypt/Port of Ain Sokhna
Eritrea
Iraq
Jordan
Kingdom of Saudi Arabia
Kuwait
Oman
Qatar
Sudan
United Arab Emirates
Yemen

A charge of US\$ 2,000 per 20' (TEU), \$3,000 per 40' (FEU) will apply to all tariff and service contract commodities for dry container type rates.

A charge of \$4000 per container will apply to all tariff and service contract commodities for reefer and special equipment type rates.

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Description

Emergency Conflict Surcharge (ECS00)

Carrier has implemented an Emergency Conflict Surcharge (ECS00) for all ports of load/discharge located within the below-referenced countries, due to on-going safety concerns related to developments in Iran and across the Arabian Peninsula. The charge will apply to all ports of load/discharge located in the below countries unless specific port(s) are identified:

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Egypt/Port of Ain Sokhna
Eritrea
Iraq
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Kingdom of Saudi Arabia
Kuwait
Oman
Qatar
Sudan
United Arab Emirates
Yemen

A charge of US\$ 2,000 per 20' (TEU), \$3,000 per 40' (FEU) will apply to all tariff and service contract commodities for dry container type rates.

A charge of \$4000 per container will apply to all tariff and service contract commodities for reefer and special equipment type rates.